

		demurer to the quiet title action is sustained (as explained above). The court finds that the FAC adequately pleads a cause of action for cancellation of instruments. The FAC alleges that Defendants recorded the superseding CC&R's and alleges the basis as to why they should be rescinded (the HOA was terminated/a defunct entity at the time of the recording, among other reasons). The FAC also pleads that there is a reasonable apprehension of serious injury, including the restricted use of her property pursuant to the superseding CC&R's and diminished property value. As Plaintiff notes, a plaintiff is permitted to plead alternative and inconsistent theories or remedies. (See, e.g., <i>Mendoza v. Continental Sales Co.</i> (2006) 140 Cal.App.4th 1395, 1402.) Accordingly, the court OVERRULES the demurrer to the fifth cause of action. <i>8th, 9th and 10th C/As (defamation, invasion of privacy) - SUSTAIN</i> In its opposing papers, Plaintiff states that it is "voluntarily omitting" the eighth, ninth and tenth causes of action. (Opp'n Br. at p. 2, lines 5-9.) Accordingly, the court SUSTAINS the demurrer as to these causes of action <i>without leave to amend</i>. Moving Defendants to give notice.
18	Hernandez vs. Ayres-Orange, L.P.	<u>Demurrer</u> <u>Motion to Strike</u> <i>1. Demurrer</i> The court OVERRULES in part and SUSTAINS in part, Defendant AYRES-ORANGE, L.P.' demurrer to the Complaint of Plaintiffs RICHARD HERNANDEZ and RUBI HERNANDEZ, by and through her guardian ad litem